

Approved as to
form only:

Date: 4/16/09

**CITY CONTRACT NO. 5127
AMENDMENT NUMBER ONE
TO THE MEMORANDUM OF UNDERSTANDING
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE**

Federal Project 1180017
Cheyenne Interstate Spur
PED Lights/Railing
Laramie County

1. **Parties.** This Amendment is made and entered into by and between the Wyoming Department of Transportation (WYDOT), whose address is 5300 Bishop Boulevard, Cheyenne, Wyoming 82009; and the City of Cheyenne (City), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
2. **Purpose of Amendment.** This Amendment shall constitute the First Amendment to the MOU between WYDOT and the City. The purpose of this Amendment is to include American Recovery and Reinvestment Act of 2009 (ARRA) federal funds and requirements to the above-mentioned project. In receiving any federal funds from the ARRA, the City shall comply with the reporting requirements, terms and conditions set forth in the ARRA and as designated by the Federal Highway Administration.

The original MOU dated November 13, 2007 provided for the PED Lights/Railing for the I-180 Viaduct Fencing Project located on Interstate 180 in the City of Cheyenne for the sum of \$375,000 toward the administration, design, and construction of the Project.

Amendment Number One, provides for adding ARRA federal funds and requirements, and clarifying maintenance responsibilities to the above-mentioned Project.

3. **Term of the Amendment.** This Amendment shall commence upon the date the last required signature is affixed hereto and shall remain in full force and effect through the term of the MOU, unless terminated at an earlier date pursuant to the provisions of the MOU, or pursuant to federal or state statute or rule or regulation.
4. **Section 4 Payment of the Original MOU is hereby amended as follows:**

The above-mentioned parties agree that WYDOT will pay all construction costs for this Project. WYDOT funds used for this Project will come out of the ARRA Program. Estimated costs for this Project, including design and construction are \$1,000,000.

Section 5 Responsibilities of WYDOT for the Original MOU will include the following requirements:

The Project shall be advertised, let to bid, and the contract awarded before February 16, 2010 and the Project construction shall be completed prior to February 16, 2012. No time extensions will be granted for this MOU due to the requirements of the ARRA.

Section 6 Responsibilities of the City for the Original MOU are hereby amended as follows:

The City agrees to retain maintenance responsibilities, at their sole expense, for the fencing once this Project is complete.

5. **Special Provisions:** Same Terms and Conditions. With the exception of items explicitly delineated in this Amendment, all terms and conditions of the Original MOU between WYDOT and the City, including but not limited to sovereign immunity, shall remain unchanged and in full force and effect.
6. **General Provisions:** Entirety of MOU. This Amendment, consisting of three pages, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

“THE REMAINDER OF THIS PAGE INTENTIONALLY LEFT BLANK”

7. **Signatures.** In witness thereof, the parties to this Amendment through their duly authorized representatives have executed this Amendment, known as Amendment Number One to the MOU between WYDOT and the City, on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Amendment as set forth herein.

The effective date of this Amendment is the date of the signature last affixed to this page.

City of Cheyenne, Wyoming:

Richard L. Kaysen, Mayor

Date

Carol A. Intlekofer, City Clerk

Wyoming Department of Transportation:

Del McOmie, P.E., Chief Engineer

Date

Approved as to form:

By: _____
Douglas J. Moench
Senior Assistant Attorney General
State of Wyoming

Date MOU revised 4/9/09